

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

CASE OF MIKLASHEVSKAYA AND OTHERS v. RUSSIA

(Applications nos. 2107/18 and 27 others –
see appended list)

JUDGMENT

STRASBOURG

20 April 2023

This judgment is final but it may be subject to editorial revision.



In the case of Miklashevskaya and Others v. Russia,

The European Court of Human Rights (Fifth Section), sitting as a Committee composed of:

María Elósegui*, President*,
Mattias Guyomar,
Kateřina Šimáčková*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 30 March 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as participants or organisers of public assemblies. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as participants or organisers of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-64, 13 February 2018; *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018; *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, and *Teslenko and Others v. Russia*, nos. 49588/12 and 3 others, §§ 72-74 and 81-82, 5 April 2022, as to administrative escorting to and/or detention in a police station beyond three hours for non-custodial offences, without substantiating the impossibility to compile an offence report at the rally venue or any

exceptional circumstances or another valid ground under the Code of Administrative Offences (CAO) or continued detention after the offence report was compiled; and *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the lack of a prosecuting party in criminal proceedings under the CAO.

V. REMAINING COMPLAINTS

13. In view of the findings in paragraphs 11 and 12 above, there is no need to examine the other aspects of the complaints raised by some applicants under Articles 5 and 6 of the Convention.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

14. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

15. Regard being had to the documents in its possession and to its case-law (see, in particular, *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, and *decides* that it is not necessary to examine the other aspects of the complaints raised by some applicants under Articles 5 and 6 of the Convention;

4. *Holds* that these complaints disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 20 April 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	María Elósegui
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	2107/18 26/12/2017	**Yelena Georgievna MIKLASHEVSKAYA** 1995	Memorial Human Rights Centre Moscow	Anticorruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 26/06/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
2.	2199/18 26/12/2017	**Roman Eldarovich GUST (BAKHTIAROV)** 1995	Memorial Human Rights Centre Moscow	Anticorruption rally Moscow 26/03/2017	Article 20.2 § 6.1 of CAO	fine of RUB 20,000	Moscow City Court 26/06/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
3.	2379/18 22/12/2017	**Maksim Nikolayevich KOVALENKO** 1975	Memorial Human Rights Centre Moscow	Anticorruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 22/06/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
4.	2383/18 22/12/2017	**Kirill Sergeyevich KOZLOV** 1994	Memorial Human Rights Centre Moscow	Anticorruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 22/06/2017	Art. 5 (1) - unlawful detention - on 26-27/03/2017 detention in a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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5.	2389/18 22/12/2017	**Aleksey Aleksandrovich MARKOV** 1975	Memorial Human Rights Centre Moscow	Anticorruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 22/06/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
6.	2394/18 28/12/2017	**German Romanovich KONONOV** 1996	Memorial Human Rights Centre Moscow	Anticorruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 28/06/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
7.	2442/18 28/12/2017	**Anastasiya Mikhaylovna KORSHUNKOVA** 1980	Memorial Human Rights Centre Moscow	Anticorruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 10/07/2017	Art. 5 (1) - unlawful detention - on 26/03/2017 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
8.	7567/18 27/01/2018	**Roman Viktorovich PINAYEV** 1989	Zhdanov Ivan Yuryevich Vilnius	Anticorruption rally Moscow 26/03/2017	Article 19.3 § 1 of CAO	fine of RUB 1,000	Moscow City Court 28/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
9.	10846/18 26/02/2018	**Igor Alekseyevich GALITSKIY** 1966	Memorial Human Rights Centre Moscow	Anticorruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 06/10/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500

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10.	12805/18 16/02/2018	**Denis Viktorovich PINAYEV** 1985	Zhdanov Ivan Yuryevich Vilnius	Anticorruption rally Moscow 26/03/2017	Article 19.3 § 1 of CAO	fine of RUB 1,000	Moscow City Court 18/08/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
11.	12806/18 07/03/2018	**Anton Alekseyevich YERMACHKOV** 1997	Memorial Human Rights Centre Moscow	Anticorruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 08/09/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
12.	13603/18 14/03/2018	**Stepan Borisovich IZYURGOV** 1995	Memorial Human Rights Centre Moscow	Anticorruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 20/09/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
13.	13607/18 14/03/2018	**Nikita Aleksandrovich KRUCHININ** 1997	Memorial Human Rights Centre Moscow	Anticorruption rally Moscow 26/03/2017	Article 20.2 § 6.1 of CAO	fine of RUB 20,000	Moscow City Court 14/09/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
14.	16262/18 13/03/2018	**Vyacheslav Nikolayevich NIKITIN** 1989	Zhdanov Ivan Yuryevich Vilnius	Anticorruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 18/09/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500

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15.	16992/18 31/03/2018	**Ilya Vitalyevich NAUMOV** 1996	Memorial Human Rights Centre Moscow	Anticorruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 02/10/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
16.	17090/18 02/04/2018	**Vasiliy Vladimirovich GOLOBOKOV** 1978	Memorial Human Rights Centre Moscow	Anticorruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 02/10/2017	Art. 5 (1) - unlawful detention - on 26-27/03/2017 escorting to and detention in a police station for and after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
17.	17107/18 02/04/2018	**Aleksandra Sergeyevna ALEKSEYEVA** 1995	Memorial Human Rights Centre Moscow	LGBT-rights event Moscow 11/05/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 02/10/2017	Art. 5 (1) - unlawful detention - on 11/05/2017 escorting to and detention in a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
18.	17476/18 04/04/2018	**Anna Dmitriyevna TELNOVA** 1999	Memorial Human Rights Centre Moscow	Anticorruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 24/10/2017	Art. 5 (1) - unlawful detention - on 26/03/2017 escorting to and detention a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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19.	17774/18 27/03/2018	**Aleksandr Rastyamovich TAGIROV** 1988	Zhdanov Ivan Yuryevich Vilnius	Anticorruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 28/09/2017		3,500
20.	21846/18 16/04/2018	**Aleksey Vadimovich TRUKHANOV** 1993	Zhdanov Ivan Yuryevich Vilnius	Anticorruption rally St Petersburg 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 02/11/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
21.	23849/18 04/05/2018	**Kirill Dmitriyevich KARPOV** 1996	Zhdanov Ivan Yuryevich Vilnius	Rally to support A. Navalnyy Yaroslavl 07/10/2017	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Yaroslavl Regional Court 09/11/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
22.	24443/18 12/05/2018	**Kamran Rustamovich DYUGUSHEV** 1993	Zhdanov Ivan Yuryevich Vilnius	Leafleting to support A. Navalnyy Cherepovets 21/09/2017	Article 20.2 § 5 of CAO	25 hours of community work	Vologda Regional Court 13/11/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
23.	24469/18 14/05/2018	**Bogdan Anatolyevich VASILENKO** 1995	Memorial Human Rights Centre Moscow	Anticorruption rally Moscow 12/06/2017	Article 19.3 § 1 of CAO	fine of RUB 500	Moscow City Court 20/03/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500

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24.	24480/18 14/05/2018	**Andrey Ivanovich ZAKHARCHENKO** 1990	Memorial Human Rights Centre Moscow	Anticorruption rally Moscow 12/06/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 20/12/2017	Art. 5 (1) - unlawful detention - on 12/06/2017 escorting to and detention in a police station for compiling an offence report (which was only compiled on 15/06/2017), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
25.	24985/18 16/05/2018	**Yuriy Aleksandrovich SKRYABIN** 1974	Zhdanov Ivan Yuryevich Vilnius	Leafleting to support A. Navalnyy Cherepovets 21/09/2017	Article 20.2 § 5 of CAO	20 hours of community work	Vologda Regional Court 16/11/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
26.	25873/18 21/05/2018	**Semen Sergeyevich OSIPOV** 1994	Zhdanov Ivan Yuryevich Vilnius	Rally to support A. Navalnyy Yaroslavl 07/10/2017	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Yaroslavl Regional Court 21/11/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
27.	26987/18 29/05/2018	**Vyacheslav Andreyevich LOBANOV** 1998	Zhdanov Ivan Yuryevich Vilnius	Rally to support A. Navalnyy Yaroslavl 07/10/2017	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Yaroslavl Regional Court 30/11/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500

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28.	10537/20 17/02/2020	**Anton Yevgenyevich MALISHEVSKIY** 1999	Memorial Human Rights Centre Moscow	Rally for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 12,000	Moscow City Court 06/11/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500

[1] Plus any tax that may be chargeable to the applicants.